

OFFICE OF THE SECRETARY

P.O. Box 942883

Sacramento, CA 94283-0001



JUL 09 2018

Honorable Brian L. McCabe
Judge of the Superior Court
County of Merced
2260 N Street
Merced, CA 95340

Re: Sanchez, Christopher Victor
CDC No.: G48567
Case No.: MF41867
Date of Sentence: January 23, 2009

Dear Honorable Brian L. McCabe:

The purpose of this letter is to provide the court with authority to resentence Christopher Victor Sanchez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Sanchez was sentenced in 2009, and was convicted of section 245, subdivision (A)(2), Assault w/a Firearm. The trial court sentenced inmate Sanchez on January 23, 2009. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Sanchez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Sanchez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Donald J. Proietti, Merced County Presiding Judge
Merced District Attorney
Public Defender

648567

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE

[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

MERCED COUNTY CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: MERCED			09 JAN 29 AM 11:21	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: CHRISTOPHER VICTOR SANCHEZ		DOB: 01-10-85	MF41867	-A
AKA:				-B
CII#:				-C
BOOKING #:		☐ NOT PRESENT		-D
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT		
DATE OF HEARING 01-23-09		DEPT. NO. 4	JUDGE BRIAN L. MCCABE	
CLERK JANE VAN VLOTEN		REPORTER RENEE TERRY	PROBATION NO. OR PROBATION OFFICER ☒ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE DAVID ELGIN		COUNSEL FOR DEFENDANT THOMAS PFEIFF ☒ APPTD.		

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment

(number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, Y)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (under 2 years)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
2	PC	245(A)(2)	Assault w/ a Firearm	2005	01-23-09			X	M							3	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
2	12022.5	4							4 0
2	12022.7(A)	3							3 0
2	186.22(A)	10							10 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. Ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 20 0

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

DEFENDANT: **CHRISTOPHER VICTOR SANCHEZ**

MF41867

-A

-B

-C

-D

9 FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$4,000.00 per PC 1202.4(b) forthwith per PC 2085.5; \$4,000.00 per PC1202.45 suspended unless parole is revoked
\$_____ per PC 1202.44 is now due, probation having been revoked.Case B: \$_____ per PC 1202.4(b) forthwith per PC 2085.5; \$_____ per PC1202.45 suspended unless parole is revoked
\$_____ per PC 1202.44 is now due, probation having been revoked.Case C: \$_____ per PC 1202.4(b) forthwith per PC 2085.5; \$_____ per PC1202.45 suspended unless parole is revoked
\$_____ per PC 1202.44 is now due, probation having been revoked.Case D: \$_____ per PC 1202.4(b) forthwith per PC 2085.5; \$_____ per PC1202.45 suspended unless parole is revoked
\$_____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$MF41867 ☒ amount to be determined to ☐ victim(s)* ☐ Restitution FundCase B: \$_____ ☐ amount to be determined to ☐ victim(s)* ☐ Restitution FundCase C: \$_____ ☐ amount to be determined to ☐ victim(s)* ☐ Restitution FundCase D: \$_____ ☐ amount to be determined to ☐ victim(s)* ☐ Restitution Fund☐ *Victim Name(s), if known, and amount breakdown in item 11, below. ☐ *Victim name(s) in probation officer's report.

c. Fine(s):

Case A: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase B: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase C: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase D: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$20.00 per PC 1465.8.

10. TESTING: a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ Other (specify): _____11. Other orders (specify): **REGISTER PURSUANT TO PC 186.30.**

12. IMMEDIATE SENTENCING:

☐ probation to prepare and submit
post-sentence report to CDCR per PC 1203c.Defendant's race/national origin: **Hispanic**

EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing. **A**
- b. ☐ at resentencing per decision on appeal.
- c. ☐ after revocation of probation.
- d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
- e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1426	1240	186 ☐ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
01-23-09		DMH	CDCR CRC
		[]	[] []

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

Jane van Vloten

DATE

01-29-09